

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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MARLA ANDERSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER  
ANTHONY VALERIO, Tax No. 961400, SERGEANT  
GUY NAPOLI, Tax No. 910968, and POLICE OFFICERS  
JOHN DOES #s 1- 4 (names and numbers of whom are  
unknown at present),

Defendants.

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**SUMMONS**

Index No.:

The Basis of Venue is:  
Location of Incident

Plaintiff designates Kings  
County as the place of trial.

**To the above-named Defendants:**

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
February 29, 2020

Yours, etc.

\_\_\_\_\_  
/s/  
JACOBS & HAZAN, LLP.  
DAVID M. HAZAN, ESQ.  
Attorney for Plaintiff  
30 Vesey Street, 4<sup>th</sup> Floor  
New York, New York 10007  
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007  
POLICE OFFICER ANTHONY VALERIO, Tax No. 961400, Transit Bureau District 34,  
Coney Island-Stillwell Av Station, Brooklyn, NY 11224  
SERGEANT GUY NAPOLI, Tax No. 910968, Transit Bureau District 34, Coney Island-  
Stillwell Av Station, Brooklyn, NY 11224

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**INDEX NO.:**

**VERIFIED COMPLAINT**

**JURY TRIAL DEMANDED**

Plaintiff MARLA ANDERSON, by her attorneys, Jacobs & Hazan, LLP, as and for her  
Verified Complaint herein, alleges upon information and belief as follows:

**PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 1, 2019, at approximately 6:30 p.m., plaintiff was lawfully inside of the subway station located at Stillwell Avenue in Coney Island when defendants unlawfully stopped, questioned, frisked, searched, illegally seized, falsely imprisoned, and falsely arrested plaintiff without reasonable suspicion, probable cause or any legal justification to arrest her. The officers unlawfully handcuffed plaintiff and transported her to the Transit District 34 Precinct whereat she was unlawfully fingerprinted, photographed and detained in a holding cell for many hours. Eventually plaintiff was transported to Kings County Central Booking whereat plaintiff was detained in several large holding cells with numerous other prisoners. On February 2, 2019, approximately 24 hours after the defendants initially detained plaintiff, plaintiff was released from custody from Kings County Central Booking, without being charged with a crime because the Kings County District Attorney's Office declined to prosecute plaintiff. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely imprisoned, and falsely arrested plaintiff in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

## **PARTIES**

2. Plaintiff MARLA ANDERSON is a resident of the state of New York.

3. POLICE OFFICER ANTHONY VALERIO, Tax No. 961400, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER ANTHONY VALERIO, Tax No. 961400, was at all times relevant herein, assigned to the Transit Bureau District 34.

5. POLICE OFFICER ANTHONY VALERIO, Tax No. 961400, is being sued in his individual and official capacity.

6. , SERGEANT GUY NAPOLI, Tax No. 910968, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. , SERGEANT GUY NAPOLI, Tax No. 910968, is and was at all times relevant herein, assigned to the Transit Bureau District 34.

8. , SERGEANT GUY NAPOLI, Tax No. 910968, is being sued in his individual and official capacity.

9. Defendants Police Officers John Does #s 1-4 are and were at all times relevant times herein officers, employees, and agents of the New York City Police Department.

10. Defendants Police Officers John Does #s 1-4 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.\

13. in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim with the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and a Hearing was held by the City of New York pursuant to General Municipal Law Section 50-h on July 16, 2019.

14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

### **STATEMENT OF FACTS**

17. By way of background, plaintiff's 15-year-old son rarely takes the subway because plaintiff drives him to and from school each day.

18. On the evening of February 1, 2019 plaintiff's son and plaintiff's cousin were scheduled to attend a family event that was not close to where they lived.

19. Plaintiff was unable to drive her son to the family event on February 1, 2019 because plaintiff had a prior engagement and was not able to attend the family event.

20. Plaintiff gave her son and her cousin permission to take the subway to the family event.

21. Plaintiff took her son and her cousin to the subway station to direct them to the proper train because they were both very unfamiliar with riding the subway.

22. The Stillwell Avenue subway station has multiple subway lines that run through that station and plaintiff wanted to make certain her son got onto the correct train.

23. When plaintiff arrived at the subway station with her son she realized that the train platform for the train her son needed to take was located on a different level from where the turnstiles used to enter the subway system were located.

24. Plaintiff spoke with the token booth clerk and explained that she did not intend to ride the subway that day, but she wanted to show her son which platform his train would arrive at.

25. Plaintiff asked the token booth clerk if she could enter the subway system with her son without paying, for the sole purpose of showing him where to go.

26. The token booth clerk gave plaintiff permission to enter the subway system without paying so that she could assist her son and instructed plaintiff to walk through the door that was generally used for handicapped passengers.

27. Plaintiff followed the token booth clerk's instructions and entered the subway system through the door without paying a fare.

28. After plaintiff walked through the door and a few feet into the subway system she was unlawfully stopped by defendants without legal justification.

29. Defendants asked plaintiff for identification and advised plaintiff that they were stopping her because she did not pay the fare before plaintiff entered the subway system.

30. Plaintiff provided the officers with her New York State driver's license and explained to the officers that she received permission to enter the subway system without paying from the token booth clerk who was located several feet away from where they were standing.

31. Plaintiff explained to defendants that she did not intend to use the subway and was simply dropping her son off at the station and directing him to the train he needed to use.

32. Defendants proceeded to check plaintiff's identification and then immediately handcuffed plaintiff behind her back and placed her under arrest, without probable cause or legal justification.

33. Plaintiff's 15-year-old son and her 15-year-old cousin witnessed defendants place plaintiff under arrest.

34. At no time relevant herein did defendants speak with the token booth clerk to determine whether plaintiff was given permission to enter the subway system through the door without paying a fare.

35. Defendants falsely arrested plaintiff without probable cause to believe she committed a crime.

36. Defendants transported plaintiff to the Transit District 34 Precinct against her will whereat defendants unlawfully searched plaintiff, without probable cause.

37. Defendants did not recover any illegal drugs, weapons, or contraband from plaintiff pursuant to the search.

38. Thereafter plaintiff was unlawfully fingerprinted, photographed and detained in a holding cell for many hours.

39. Eventually, plaintiff was transported to Kings County Central Booking whereat she was detained in several large holding cells with numerous other prisoners accused of committing a variety of crimes.

40. The experience was frightening for plaintiff and caused her to suffer extreme anxiety for the duration of the time she was detained.

41. On February 2, 2019, approximately 24 hours after plaintiff was arrested, she was advised by the correction officers at Central Booking that she was being released from custody without being charged with a crime.

42. Plaintiff was released because the Kings County District Attorney's Office declined to prosecute plaintiff.

43. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendants have an objective factual basis to establish reasonable suspicion or probable cause to believe plaintiff committed a crime.

44. Defendants unlawfully handcuffed, falsely arrested and falsely imprisoned plaintiff without probable cause or any legal justification to arrest plaintiff.

45. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights are liable to plaintiff for their failure to intervene.

46. Plaintiff suffered severe emotional distress stress caused by defendants' unlawful stop, question, frisk, searches, and false arrest/ false imprisonment.

47. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant police officers possess an objective factual basis to establish probable cause to believe she committed a crime or violated the law in any manner.

48. The unlawful stop, question, frisk, search, false arrest, and false imprisonment, of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

### **FIRST CAUSE OF ACTION**

#### **Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights**

49. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, searched, falsely arrested, and falsely imprisoned, without probable cause, in violation of

plaintiff's right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

51. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

## **SECOND CAUSE OF ACTION**

### **False Arrest and False Imprisonment**

52. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

54. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

## **THIRD CAUSE OF ACTION**

### **Unlawful Stop, Question, and Frisk**

58. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.



60. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

64. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

## **FOURTH CAUSE OF ACTION**

### **Unlawful Search**

65. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

67. Defendants lacked probable cause to search plaintiff.

68. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

## **FIFTH CAUSE OF ACTION**

### **Negligent Infliction of Emotional Distress**

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. By falsely arresting plaintiff in front of her son and cousin and then fabricating allegations against plaintiff to justify why defendants arrested her, defendants each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff.

74. The acts and conduct of the defendants were the direct and proximate cause of damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

75. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

78. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

## **SIXTH CAUSE OF ACTION**

### **Intentional Infliction of Emotional Distress**

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. The above-described conduct by falsely arresting plaintiff and then fabricating allegations against plaintiff to justify why defendants arrested him, defendants, each acting individually and in concert with each other, defendants' conduct was outrageous, atrocious so extreme in degree to go beyond all possible bounds of decency, and utterly intolerable in a civilized community.

81. Defendants' conduct was intentional, wanton and reckless and was done with a total disregard of the risks to plaintiff's health and safety.

82. As a direct and proximate result of the acts alleged above, plaintiff suffered severe emotional distress, humiliation, mental anguish, and physical distress.

83. The acts of defendants alleged above were willful, wanton, flagrant, malicious, oppressive, and performed with a total disregard for plaintiff's health safety and welfare and justify the award of punitive damages.

84. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

87. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

## **SEVENTH CAUSE OF ACTION**

### **Failure to Intervene**

88. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

89. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

90. Defendants failed to intervene to prevent the unlawful conduct described herein.

91. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

92. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

93. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

## EIGHTH CAUSE OF ACTION

## Negligent Hiring, Retention, Training and Supervision

94. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 93 with the same force and effect as if more fully set forth at length herein.

95. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

## JURY DEMAND

96. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

## PRAYER FOR RELIEF

**WHEREFORE**, plaintiff Marla Anderson demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York  
February 29, 2020

By: /s/  
DAVID M. HAZAN  
JACOBS & HAZAN, LLP  
Attorneys for Plaintiff  
30 Vesey Street, 4<sup>th</sup> Floor  
New York, NY 10007  
(212) 577-2690

**ATTORNEY'S VERIFICATION**

**DAVID M. HAZAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York  
February 29, 2020

\_\_\_\_\_  
/s/  
DAVID M. HAZAN